

Section 178. (Powers of Central Commission to make regulations): --- (1) The Central Commission may, by notification make regulations consistent with this Act and the rules generally to carry out the provisions of this Act.

(2) In particular and without prejudice to the generality of the power contained in sub-section (1), such regulations may provide for all or any of following matters, namely:-

- (a) period to be specified under the first proviso to section 14;
- (b) the form and the manner of the application under sub-section (1) of section 15;
- (c) the manner and particulars of notice under sub-section (2) of section 15;
- (d) the conditions of licence under section 16;
- (e) the manner and particulars of notice under clause (a) of sub-section (2) of section 18;
- (f) publication of alterations or amendments to be made in the licence under clause(c) of sub-section (2) of section 18;
- (g) Grid Code under sub-section (2) of section 28;
- (h) levy and collection of fees and charge from generating companies or transmission utilities or licensees under sub-section (4) of section 28;
- (i) rates, charges and terms and conditions in respect of intervening transmission facilities under proviso to section 36;
- (j) payment of the transmission charges and a surcharge under-sub-clause (ii) of clause (d) of sub-section (2) of section 38;
- (k) reduction ¹[***] of surcharge and cross subsidies under second proviso to sub-clause (ii) of clause (d) of sub-section (2) of section 38;
- (l) payment of transmission charges and a surcharge under sub-clause (ii) of clause(c) of section 40;

¹ The words “*and elimination*” omitted by Act 26 of 2007, Sec.20 (w.e.f. 15th June 2007).

- (m) reduction ¹[***] of surcharge and cross subsidies under the second proviso to sub-clause (ii) of clause (c) of section 40;
- (n) proportion of revenues from other business to be utilised for reducing the transmission and wheeling charges under proviso to section 41;
- (o) duties of electricity trader under sub-section (2) of section 52;
- (p) standards of performance of a licensee or class of licensees under sub-section (1) of section 57;
- (q) the period within which information to be furnished by the licensee under sub-section (1) of section 59;
- ²[(r) the manner of reduction of cross subsidies under clause (g) of section 61;]
- (s) the terms and conditions for the determination of tariff under section 61;
- (t) details to be furnished by licensee or generating company under sub-section (2) of section 62;
- (u) the procedures for calculating the expected revenue from tariff and charges under sub-section (5) of section 62;
- (v) the manner of making an application before the Central Commission and the fee payable therefor under sub-section (1) of section 64;
- (w) the manner of publication of application under sub-section (2) of section 64;
- (x) issue of tariff order with modifications or conditions under subsection (3) of section 64;
- (y) the manner by which development of market in power including trading specified under section 66;

¹ The words “*and elimination*” omitted by Act 26 of 2007, Sec.20 (w.e.f. 15th June 2007).

² Subs. by Act 26 of 2007, Sec.20 (w.e.f. 15th June 2007).

- (z) the powers and duties of the Secretary of the Central Commission under sub-section (1) of section 91;
 - (za) the terms and conditions of service of the Secretary, officers and other employees of Central Commission under sub-section (3) of section 91;
 - (zb) the rules of procedure for transaction of business under subsection (1) of section 92;
 - (zc) minimum information to be maintained by a licensee or the generating company and the manner of such information to be maintained under sub-section (8) of section 128;
 - (zd) the manner of service and publication of notice under section 130;
 - (ze) any other matter which is to be, or may be, specified by regulations.
- (3) All regulations made by the Central Commission under this Act shall be subject to the conditions of previous publication.